

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Squad #05	CCRB Case #: 201410919	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/03/2014 10:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/3/2016	Precinct: 121		
Date/Time CV Reported Thu, 10/09/2014 3:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/09/2014 3:43 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gary Leite	27464	948376	121 PCT
2. POM Stephen Furno	07578	948028	121 PCT
3. POM John Murphy	20986	944718	121 PCT
4. SGT Justin Galizia	01627	941788	121 PCT
5. SGT Peter Guido	03262	922464	121 PCT
6. POM Brian Babiak	02186	931533	121 PCT
7. POM Michael Carr	01928	944415	121 PCT
8. POM Luigi Peluso	01683	951031	121 PCT
9. An officer			121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Riviello	04495	931930	121 PCT
2. DI Terence Hurson	00000	903282	121 PCT
3. SGT Richard Sheahan	04292	937526	121 PCT
4. POF Jennifer Marrero	25571	928709	121 PCT
5. POM John Falzarano	08668	948951	121 PCT
6. POM Michael Ustick	05406	948517	121 PCT
7. POM John Fabrizio	24129	950389	121 PCT
8. POM Derek Dehorta	31459	952650	121 PCT
9. POM Thomas Lawson	17540	951903	121 PCT
10. POM Jonathan Glazer	01037	949035	121 PCT
11. POM Michael Venditti	18781	952318	121 PCT
12. POM Andrew Lassen	03267	950728	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
13. POM Thomas Perrotti	13463	947341	121 PCT
14. POM Victor Villarreal	04382	951397	121 PCT
15. POM Daniel Kearney	11964	947125	121 PCT
16. LT William Davitt	00000	921264	121 PCT
17. SGT Michael Dicecco	03303	903799	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Furno	Abuse: PO Stephen Furno stopped § 87(2)(b)	A . Substantiated
B . POM Stephen Furno	Force: PO Stephen Furno used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Gary Leite	Force: PO Gary Leite used physical force against § 87(2)(b)	C . Exonerated
D . POM Michael Carr	Force: PO Michael Carr struck § 87(2)(b) with a baton.	D . Unsubstantiated
E . POM John Murphy	Force: PO John Murphy used physical force against § 87(2)(b)	E . Unsubstantiated
F . SGT Justin Galizia	Force: PO Justin Galizia used physical force against § 87(2)(b)	F . Unsubstantiated
G . POM Michael Carr	Force: PO Michael Carr used physical force against § 87(2)(b)	G . Unsubstantiated
H . An officer	Force: An officer used a Taser against § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Force: An officer struck § 87(2)(b) with a baton.	I . Officer(s) Unidentified
J . SGT Peter Guido	Abuse: Sgt. Peter Guido threatened to arrest § 87(2)(b)	J . Unsubstantiated
K . POM Brian Babiak	Abuse: PO Brian Babiak threatened to arrest § 87(2)(b)	K . Unsubstantiated
L . POM Luigi Peluso	Abuse: PO Luigi Peluso threatened to arrest § 87(2)(b)	L . Unsubstantiated
M . POM Brian Babiak	Abuse: PO Brian Babiak threatened § 87(2)(b) with the use of force.	M . Unsubstantiated
N . POM Michael Carr	Abuse: PO Michael Carr threatened § 87(2)(b) with the use of force.	N . Unsubstantiated
O . POM John Murphy	Abuse: PO John Murphy threatened § 87(2)(b) with the use of force.	O . Unsubstantiated
P . SGT Peter Guido	Discourtesy: Sgt. Peter Guido spoke discourteously to § 87(2)(b)	P . Unsubstantiated
Q . POM Michael Carr	Discourtesy: PO Michael Carr spoke discourteously to § 87(2)(b) and § 87(2)(b)	Q . Unsubstantiated
R . POM Brian Babiak	Discourtesy: PO Brian Babiak spoke discourteously to § 87(2)(b)	R . Unsubstantiated
S . POM John Murphy	Discourtesy: PO John Murphy spoke discourteously to § 87(2)(b)	S . Unsubstantiated
T . POM Luigi Peluso	Discourtesy: PO Luigi Peluso spoke discourteously to § 87(2)(b)	T . Unsubstantiated

Case Summary

At approximately 10:30 p.m. on October 3, 2014, PO John Murphy, PO Gary Leite, and PO Stephen Furno of the 121st Precinct observed four males, § 87(2)(b) and § 87(2)(b) “hanging out” in the laundry room in the lobby of § 87(2)(b) in Staten Island. § 87(2)(b) is a Federal Trespass Affidavit (FTAP) building (BR01) and none of the four males resided in the building. The officers knew § 87(2)(b) and § 87(2)(b) from prior interactions and knew that they did not reside in § 87(2)(b). None of the officers, however, knew § 87(2)(b). As the officers entered the building and approached the males, § 87(2)(b) left the group and walked or ran towards the rear entrance of § 87(2)(b). PO Furno went around the outside of the building to the rear entrance and stopped § 87(2)(b). **(Allegation A)**. A struggle ensued and PO Furno and PO Leite allegedly punched and kicked § 87(2)(b). **(Allegations B and C)**. Additional officers responded to the location and one of them, PO Michael Carr of the 121st Precinct, allegedly struck § 87(2)(b) with a baton **(Allegation D)**. § 87(2)(b) was handcuffed, taken out of the building, placed into a marked car, and taken to the 121st Street stationhouse.

While § 87(2)(b) was being arrested at the rear of § 87(2)(b) a group of people from the neighborhood, including § 87(2)(b)'s sister § 87(2)(b) and § 87(2)(b) his brother § 87(2)(b) and his mother, § 87(2)(b) formed at the front entrance of § 87(2)(b) and along Holland Avenue. Several allegations of physical force **(Allegations E, F, G, H, and I)**, threat of arrest **(Allegations J, K, and L)**, threat of force **(Allegations M, N, and O)**, and discourtesy **(Allegations P, Q, R, S, and T)** against PO Murphy, PO Carr, Sgt. Justin Galizia, Sgt. Peter Guido, PO Brian Babiak, PO Luigi Peluso, and unidentified officers from the 121st Precinct were made by various members of § 87(2)(b)'s family.

§ 87(2)(b) was arrested and charged with § 87(2)(b).
§ 87(2)(b) was charged with § 87(2)(b).
§ 87(2)(b) was charged with § 87(2)(b).
§ 87(2)(b) Marijuana and PCP were vouchered in regards (BR02).

§ 87(2)(b) provided video footage of the portions of this incident (BR23). The video footage shows none of the misconduct alleged in this case or any other FADOs.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

As of August 10, 2015, over seven months after the 90-day filing deadline, no Notice of Claim had been filed against the City of New York in regards to this incident (BR03). Due to § 87(2)(b)'s arrest, this case was deemed unsuitable for mediation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the second CCRB case involving § 87(2)(b) § 87(2)(b)

- This is the first CCRB case involving § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] (BR05).
- PO Leite has been a member of the NYPD for six years and has had eight previous CCRB allegations in three cases with one substantiated allegation for discourtesy in CCRB case #201212775 § 87(2)(g) [REDACTED].
- PO Furno has been a member of the NYPD for six years and has had three previous CCRB allegations in two cases with no substantiated allegations. § 87(2)(g) [REDACTED]
- PO Murphy has been a member of the NYPD for eight years and has had four previous CCRB allegations in two cases with no substantiated allegations. § 87(2)(g) [REDACTED]
- Sgt. Galizia has been a member of the NYPD for nine years and has had two previous CCRB allegations in two cases with no substantiated allegations. § 87(2)(g) [REDACTED]
- Sgt. Guido has been a member of the NYPD for 16 years and has had 9 previous CCRB allegations in five cases with no substantiated allegations. § 87(2)(g) [REDACTED]
- PO Babiak has been a member of the NYPD for 13 years and has had four previous CCRB allegations in one case with no substantiated allegations. § 87(2)(g) [REDACTED]
- PO Carr has been a member of the NYPD for eight years and has had nine previous CCRB allegations in four cases with no substantiated allegations. § 87(2)(g) [REDACTED]
- PO Peluso has been a member of the NYPD for four years and these are the first CCRB allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

Recommendations

Allegation A – Abuse of Authority – PO Stephen Furno stopped § 87(2)(b)

§ 87(2)(b) made his initial complaint on October 9, 2014. He provided a sworn statement on October 27, 2014, and a follow-up telephone statement was obtained on January 28, 2015 (BR06). A photo viewing interview was conducted with § 87(2)(b) on March 12, 2015 (BR07). A telephone statement was obtained from § 87(2)(b) on January 6, 2015 (BR08). The CCRB obtained statements from PO Furno on March 5, 2015, PO Leite and PO Murphy on April 29, 2015.

§ 87(2)(g)

§ 87(2)(b) In his initial telephone statement and his sworn statement, § 87(2)(b) stated that he and the officer whom he observed stop the three males entered the building at about the same time, though he § 87(2)(b) entered before the officer did. In his subsequent telephone statement, § 87(2)(b) stated that at the time he entered the building the officer had already stopped the males. § 87(2)(b) stated consistently that he never approached the males in the laundry room and had no interaction with them. In his sworn statement he stated that he did not know the males but in his subsequent telephone statement he stated that he knew them from around the neighborhood but did not “associate” with them.

§ 87(2)(b) stated that, as soon as he entered § 87(2)(b) he decided to leave and return home because he did not want to get arrested for trespassing. Rather than walking back through the front entrance, he walked to the rear entrance of the building. As he opened the rear door, § 87(2)(b) observed a uniformed officer, identified via the investigation as PO Furno. PO Furno kicked the air, which caused § 87(2)(b) to step back. § 87(2)(b) attempted to walk out of the door past PO Furno and PO Furno grabbed his wrist.

§ 87(2)(b) provided a very different account than § 87(2)(b). He stated that § 87(2)(b) was a friend of his and that, though § 87(2)(b) was not initially with he, § 87(2)(b) and § 87(2)(b) in the laundry room, § 87(2)(b) joined them in the laundry room and spoke with them for approximately five to ten minutes before walking off towards the rear of the building. Shortly after § 87(2)(b) walked off, § 87(2)(b) observed PO Murphy, whom he knew from previous interactions, and another officer, identified via the investigation as PO Leite, approaching him and § 87(2)(b) and § 87(2)(b). When § 87(2)(b) observed the officers they (the officers) were already inside the building and he did not see them entering. § 87(2)(b) acknowledged that neither he nor § 87(2)(b) or § 87(2)(b) resided in § 87(2)(b). He denied, however, that any of them had been smoking marijuana or had thrown a bag of marijuana, though the officers recovered marijuana from the ground. § 87(2)(b) stated that, from where they were, he and § 87(2)(b) and § 87(2)(b) could not see the rear of the building and he did not see § 87(2)(b) again until they were at the stationhouse.

§ 87(2)(g)

PO Leite, PO Murphy, and PO Furno were patrolling the housing complex in which § 87(2)(b) is located. As they approached § 87(2)(b) they observed four males in the vicinity of the laundry room in the lobby. It is undisputed that the officers could see into the lobby of § 87(2)(b) from outside. The entire front of § 87(2)(b) is made from glass and the lobby and laundry room can be clearly seen from outside the building (BR09 – Photo #1). The hallway leading to the rear door of § 87(2)(b) begins on the left edge of the lobby (BR09 – Photos #3,4, and 5) but is offset from the front door and cannot be seen from the front door or the laundry room (BR09 – Photos #1 and 2). § 87(2)(g)

§ 87(2)(g)

PO Murphy and PO Leite stated that they approached § 87(2)(b) on foot as part of their patrol. The buildings in the complex were “FTAP buildings,” which “meant that officers have the permission of the management to enter and patrol the buildings.” PO Murphy stated that they had a copy of the key to the front doors of § 87(2)(b) provided by the management company. As they walked towards the building, both officers observed four males “hanging out” in the laundry room in the lobby (BRX – Photos #1 and 2).

PO Murphy recognized three of these individuals as § 87(2)(b) and § 87(2)(b) all of whom he had stopped on multiple occasions for being in § 87(2)(b) “when they are not supposed to be in the building” and “knew for a fact” that they did not reside in the building. PO Murphy did not recognize the fourth individual, whom he later identified as § 87(2)(b). PO Murphy had never interacted with § 87(2)(b) prior to this incident. PO Leite definitively recognized § 87(2)(b) and § 87(2)(b) from previous interactions. He knew their residences and knew that they did not reside in § 87(2)(b). He recognized § 87(2)(b) but did not recall the circumstances under which he knew him. He did not recognize § 87(2)(b).

As the officers entered the building, the four males walked out of the laundry room and § 87(2)(b) took off running down the hallway leading towards the rear entrance of the building. PO Furno turned around and went back around the outside of § 87(2)(b) towards the rear of the building. As PO Leite and PO Murphy approached the three, both officers observed § 87(2)(b) throw or drop multiple clear Ziplock bags with “green leafy substances”, which they believed to marijuana, to the ground from his right hand.

Both PO Leite and PO Murphy stated that their only reason for wanting to approach the males was their suspicions that they were trespassing in the building. Neither officer had seen the bags thrown by § 87(2)(b) at any point prior to the point when they observed him throw it. They had had no suspicions regarding marijuana in connection to the males prior to the point when they observed § 87(2)(b) throw the bags.

§ 87(2)(g) PO Furno stated that the officers were in a vehicle, driving past the front of § 87(2)(b) when they observed the four males in the laundry area. PO Furno observed the males passing “something,” which he could not describe, around between themselves. PO Furno stated that the laundry room in § 87(2)(b) was a place where marijuana was commonly smoked and he therefore suspected that the object the four males were passing was marijuana. PO Furno did not observe any of the individuals put the object to his lips. After approximately 30 seconds of observing the males in the laundry room, the three officers in the vehicle discussed what they had

observed amongst themselves, all agreed that what they had observed being passed was marijuana, and decided that they should go investigate.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation A** be **Substantiated**.

Allegation B – Force – PO Stephen Furno used physical force against § 87(2)(b)

Allegation C – Force – PO Gary Leite used physical force against § 87(2)(b)

Allegation D – Force – PO Michael Carr struck § 87(2)(b) with a baton.

§ 87(2)(b) stated that, when PO Furno grabbed his hand, he § 87(2)(b) backed away into the building and broke PO Furno's grip. PO Furno grabbed § 87(2)(b) again and placed a handcuff on his right hand. § 87(2)(b) backed up until his back was against a wall while PO Furno continued to attempt to handcuff his left hand. PO Furno did not issue any instructions to § 87(2)(b) as he tried to handcuff him. PO Furno punched § 87(2)(b) five to six times in the face.

As the struggle continued, additional officers approached them from the direction of the front entrance. The first of these officers, identified via the investigation as PO Leite, joined PO Furno and punched § 87(2)(b) in the face approximately two to three times. § 87(2)(b) initially stated that PO Furno and PO Leite tripped him, causing him to fall to the ground. Upon further questioning, however, § 87(2)(b) stated that he slid down to the ground on his own after the officers punched him in the face. Once on the ground, after approximately two minutes after the struggle began, he was handcuffed. § 87(2)(b) alleged that, after he was handcuffed, PO Furno punched him in the face again and a uniformed black male officer, identified via the investigation as PO Carr, struck him approximately four times on his leg with a baton.

§ 87(2)(b) informed the CCRB that he suffered no injuries as a result of this incident. § 87(2)(a) PHL § 19(6)
[REDACTED]
[REDACTED]
[REDACTED]

The CCRB obtained a sworn statement from § 87(2)(b) on November 14, 2014, a follow-up telephone statement on January 28, 2015 (BR17), and photo-viewing interview on March 12, 2015 (BR18). The CCRB obtained a sworn statement from § 87(2)(b) on November 14, 2014, and a follow-up statement and photo-viewing interview on March 12, 2015 (BR19). The CCRB obtained a telephone statement from § 87(2)(b) on January 6, 2015 (BR20) and a photo-viewing interview on March 12, 2015 (BR21). The CCRB obtained a sworn statement and a photo-viewing interview from § 87(2)(b) on March 12, 2015 (BR22). § 87(2)(b) provided video footage of the portions of this incident (BR23). The video footage shows none of the misconduct alleged in this case or any other FADOs. Field work was conducted on November 14, 2014, and a statement was obtained from witness § 87(2)(b) [REDACTED]

§ 87(2)(b) and § 87(2)(b) all stated that they observed the struggle between the officers and § 87(2)(b) at the rear entrance through the glass at the front entrance of § 87(2)(b) (BR09 – Photo #4). They all, however, provided accounts of the

struggle that involved more officers and, in some instances, more force, than was described by § 87(2)(b) himself.

§ 87(2)(b) alleged that, while she was standing in the vestibule between the front doors of § 87(2)(b) (BR09 – Photo #3), she observed § 87(2)(b) lying on the ground toward the rear of the building with approximately seven or eight officers “on” his back, punching him in the back and mouth. She saw officers punch him a total of approximately six times over the course of the struggle, which she estimated lasted 20 minutes. § 87(2)(b) stated that § 87(2)(b) was “resisting arrest” by wiggling and shaking his shoulders and telling the officers to get off him.

§ 87(2)(b) alleged that she observed § 87(2)(b) at the rear entrance of § 87(2)(b) and approximately 30 officers “jumped on” him and struck him. § 87(2)(b) initially stated she observed the officers hitting him in the face, stomach, back and legs, with approximately four officers striking him with batons and the rest with punches. However, upon further questioning, she clarified that she could not see § 87(2)(b) “at all” when the officers were “on” him. She explained that she observed officers attempting to strike § 87(2)(b) a total of approximately five times but never observed the blows strike him.

§ 87(2)(b) alleged that he observed approximately 10 uniformed male officers “on top of” § 87(2)(b) punching him, kicking him, and striking him with sticks. He observed § 87(2)(b) punched once in the face and struck approximately two or three times on his arms and legs with a stick. § 87(2)(b) was lying on his left side and his hands were behind his back as this occurred. § 87(2)(b) was lying still and was not moving or resisting in any way. § 87(2)(b) was yelling, “Help me” repeatedly. § 87(2)(b) initially stated that § 87(2)(b) was handcuffed after the officers stopped beating him. However, upon further questioning, he stated that § 87(2)(b) may have already been handcuffed while the officers were beating him, though he could not see his hands. The officers then lifted § 87(2)(b) up to his feet and “smashed him against a wall.”

§ 87(2)(b) stated that she observed officers punching § 87(2)(b) in the face while they were handcuffing him. After he was handcuffed, she observed an officer kick him in the face or the neck.

The CCRB obtained statements from PO Carr, PO Peluso, and PO Dehorta on May 20, 2015, from Sgt. Galizia on May 22, 2015, and from Sgt. Guido and PO Babiak on May 28, 2015.

PO Furno stated that, when he grabbed § 87(2)(b) and attempted to place him in handcuffs, § 87(2)(b) refused to put his arms behind his back. § 87(2)(b) continued to attempt to walk away from PO Furno and “flail” his arms. PO Furno specified that § 87(2)(b)’s “flailing” was “wild swinging” to escape his (PO Furno’s) grasp rather than attempts to strike PO Furno. PO Furno explained, “I kept trying to put his arms behind his back. I would get one, and the other one would come loose.” Less than a minute after the struggle began, PO Leite came around the corner to where PO Furno and § 87(2)(b) were and assisted PO Furno in attempting to handcuff § 87(2)(b).

PO Furno stated that, during the struggle, he punched § 87(2)(b) once in the face, “because he kept flailing his arms and at that point he has one cuff on and I was afraid that that would become a weapon for one of us so to me that was an immediate threat to at least get him subdued to the ground and since he was flailing and I already had his one arm, that was the only thing I could do.” PO Furno stated that he did not aim to punch § 87(2)(b) in the face, rather, he aimed for his upper shoulder and arm area but that,

because he was moving about, it struck him on the face. PO Furno did not observe PO Leite strike § 87(2)(b) or observe § 87(2)(b) strike he or PO Leite at any point. PO Furno did not punch § 87(2)(b) at any other point and did not observe any other officers punch him. PO Furno did not have a baton with him on the day and did not observe PO Leite or any other officers with their batons out. PO Furno did not strike § 87(2)(b) with a baton and did not observe any other officer do so.

PO Furno kned and kicked § 87(2)(b) “at least twice” in the back of his knees. PO Furno stated that this was a technique to attempt to “buckle” § 87(2)(b)’s knees to force him to the ground. This was effective in taking § 87(2)(b) to the ground. He did not observe PO Leite kick or knee § 87(2)(b). PO Furno did not recall whether § 87(2)(b) went to his knees first before going onto the ground or whether he went straight to the ground. PO Furno landed on top of § 87(2)(b) and kept his upper body on § 87(2)(b)’s “lower-back mid-back area,” to keep him on the ground. PO Furno stated that he did this to avoid having to exert more energy because by this point he was tired and out of breath. § 87(2)(b) had initially landed on his front but in trying to get back up and get out from underneath PO Furno, he turned onto his side. PO Furno and PO Leite were still unable to keep § 87(2)(b)’s arms behind his back to finish handcuffing him. He still had the one cuff on but they were unable to get the second hand cuffed. PO Furno stated that, at the time § 87(2)(b) was taken to the ground, only he and PO Leite were involved in the struggle with § 87(2)(b). He estimated that the struggle from the time he first grabbed § 87(2)(b) to the point when he was taken to the ground lasted approximately three to five minutes. PO Furno denied having punched or kicked § 87(2)(b) once he was on the ground and did not observe any other officer do so.

Once § 87(2)(b) was on the ground, PO Furno made a radio transmission requesting additional units. A large number of officers began to arrive at the scene. As the officers arrived, PO Furno and PO Leite were able to get § 87(2)(b)’s hands and handcuff him. He did not believe that any officers aside from he and PO Leite were involved in the process of handcuffing § 87(2)(b). PO Furno denied having struck § 87(2)(b) after he was handcuffed and did not observe any other officer do so.

PO Leite stated that, just as he and PO Murphy prepared to speak to the other three males, he heard PO Furno’s voice coming from the direction of the hallway into which § 87(2)(b) had run, saying repeatedly, “Stop resisting.” From where he was located at this time, PO Leite could not see PO Furno or § 87(2)(b). PO Leite left PO Murphy with the three individuals and ran down the hallway. As he got closer to the rear entrance, PO Leite observed PO Furno, “engaging with § 87(2)(b) who is actively resisting and punching officer Furno.” PO Leite explained that he observed § 87(2)(b) swinging his arms but did not actually observe them strike PO Furno. PO Furno appeared to be attempting to hold § 87(2)(b) while § 87(2)(b) appeared to be alternating between trying to turn around and pull away from PO Furno, and trying to grab PO Furno and push him away. PO Leite could not see where on PO Furno’s body § 87(2)(b) was grabbing and could not see where on § 87(2)(b)’s body PO Furno was grabbing.

Upon reaching PO Furno and § 87(2)(b) PO Leite got behind § 87(2)(b) and grabbed hold of the arms of § 87(2)(b)’s jacket. § 87(2)(b) attempted to slip out of his jacket and PO Leite punched § 87(2)(b) in the side of his body, in the vicinity of his ribs, once or twice. PO Leite stated that he punched § 87(2)(b) because “he was actively resisting arrest.” He did not recall seeing PO Furno or any other officers punch § 87(2)(b) at any point in the incident and he did not punch § 87(2)(b) at any other point in the incident. PO Leite did not punch § 87(2)(b) in the face and did not observe any other officers do so. PO Leite did not kick or attempt to kick § 87(2)(b) and

did not observe PO Furno or any other officer do so at any point. PO Leite did not take out his baton or strike § 87(2)(b) with a baton at any point and did not see any other officer do so.

PO Leite initially stated that he and PO Furno and PO Leite took § 87(2)(b) to the ground. Upon further questioning, however, he stated that all three of them fell to the ground as a result of the momentum of the struggle. He did not recall in what position § 87(2)(b) landed on the ground. PO Leite landed on the left side of his body as did PO Furno. Neither of them landed on top of § 87(2)(b). PO Leite estimated that they went to the ground approximately five to ten seconds after he joined the struggle. PO Leite never attempted to trip § 87(2)(b) and did not observe PO Furno attempt to do so.

One the floor, PO Furno, PO Leite, and § 87(2)(b) continued “tussling.” PO Furno and PO Leite attempted to flip § 87(2)(b) onto his front so that they could bring his arms behind his back to handcuff him. § 87(2)(b) was “squirming” and rolling his body from side to side. Approximately 10 to 15 additional officers arrived during this portion of the struggle. Approximately four or five of them, PO Leite did not recall any specifically, joined he and PO Furno in attempting to handcuff § 87(2)(b) and they managed to handcuff him. PO Leite could not recall what specific actions he took to help get § 87(2)(b) handcuffed at this point but believed he brought one of § 87(2)(b)'s arms behind his back. PO Leite estimated that they were able to handcuff § 87(2)(b) approximately one minute after they went to the ground. PO Leite did not observe any officers strike § 87(2)(b) after he was in handcuffs.

Of the other interviewed officers, only Sgt. Guido acknowledged having observed or participated in the handcuffing of § 87(2)(b). Sgt. Guido stated that, as he ran down the hallway, he observed § 87(2)(b) and PO Furno and PO Leite at the end of the hallway. § 87(2)(b) was lying on the ground, facing away from PO Guido and towards the side-door of § 87(2)(b) at the end of the hallway, and PO Furno and PO Leite were knelt on the ground beside him. Sgt. Guido did not observe any other officers beside PO Furno and PO Leite in the hallway at this time. § 87(2)(b) was moving his arms and body, rolling from side to side, and kicking his legs. PO Leite and PO Furno were each holding one of § 87(2)(b)'s arms but appeared to be attempting to bring his arms together and were unable to do so. Sgt. Guido ran up to them and knelt down beside them. Sgt. Guido grabbed both of § 87(2)(b)'s arms and pushing them together, allowing the other two officers to handcuff him. Sgt. Guido stated that, aside from himself, PO Leite, and PO Furno, no other officers were involved in the struggle to handcuff § 87(2)(b). Sgt. Guido never observed PO Leite or PO Furno punch or kick § 87(2)(b) and never did so himself. He did not see either officer with their baton out and never took his out.

PO Carr and his partner, PO Babiak, both denied that they ever entered § 87(2)(b) when they arrived at the scene. They stated that, shortly after they pulled up to Holland Avenue in their marked car, Sgt. Guido brought § 87(2)(b) to their vehicle and instructed them to take him to the stationhouse, which they promptly did. PO Carr denied having struck § 87(2)(b) with a baton at any point.

Penal Law Section 35.30 (BR15) and Patrol Guide section 203-11 (BR16) hold that officers are able to use physical force to overcome resistance in the course of effecting an arrest.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that the allegations against PO Furno and PO Carr, **Allegations B and D**, be **Unsubstantiated**, while the allegation against PO Leite, **Allegation C**, be **Exonerated**.

Allegation E – Force – PO John Murphy used physical force against

Allegation F – Force – PO Justin Galizia used physical force against

Allegation G – Force – PO Michael Carr used physical force against

§ 87(2)(b) and § 87(2)(b) made several allegations against officers in regards to force used against § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

In her initial sworn statement, § 87(2)(b) alleged that she attempted to run into § 87(2)(b) and an officer, whom she identified in her photo viewing appointment as PO Murphy, said to her, “Move, you can’t come through the back,” and pushed her back in the left shoulder with both hands.

§ 87(2)(b) was running and was approximately two feet away from PO Murphy as he pushed her, which caused her to fall to the ground onto her back. As she was getting up from the ground,

§ 87(2)(b) “tried to fight” PO Murphy and an unidentified officer struck her on the left leg with a baton. § 87(2)(b) then spat on the chest of an unidentified officer, who then “tazed”

§ 87(2)(b) on the right side of her stomach with a black Taser, causing her to fall back to the ground. § 87(2)(b) did not see or feel any barbs enter her skin but she felt a shock. § 87(2)(b)

§ 87(2)(b) scrapped her left leg on the floor and it began bleeding just below the knee (BR24).

In her follow-up statement, however, § 87(2)(b) provided a different account of the Taser use. She stated that, at the time it occurred, she was attempting to pull her brother, § 87(2)(b) away from officers who were “beating him up.” An unidentified officer standing less than one foot away from § 87(2)(b) told her to “get back.” § 87(2)(b) replied, “Nah, I need to get my brother.” The officer then removed the Taser from the left side of his belt and touched her once, somewhere on her left arm, with the Taser. She felt a “shock.” The Taser left no marks and she suffered no injury as a result. In her photo viewing interview, § 87(2)(b) could not identify the officer who used a Taser

against her but identified Sgt. Galizia as the officer who “pushed” her when she was trying to get her brother “off the floor.”

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) alleged that as the officers were walking § 87(2)(b) to a police car, she ran towards them to “help” § 87(2)(b). She fell as she ran, got back up, and continued running. § 87(2)(b) ran next to § 87(2)(b) and reached out to grab his arm. One the officers who were holding § 87(2)(b) whom she identified in her photo viewing as PO Carr, punched § 87(2)(b) in her right arm and she fell. § 87(2)(b) came to “get” § 87(2)(b) and PO Carr pushed her § 87(2)(b) causing her to fall to the ground as well and she began to bleed from her right leg. § 87(2)(b) later stated that § 87(2)(b) was trying to “get” § 87(2)(b) when PO Carr pushed her.

§ 87(2)(b) stated that, as the officers were transporting § 87(2)(b) to a police car, § 87(2)(b) approached them and told them that he was her brother and that he was not resisting. An unidentified officer, whom § 87(2)(b) could not describe, pushed § 87(2)(b) back. § 87(2)(b) stumbled but did not fall. The unidentified officer then discharged his Taser at § 87(2)(b) causing her to fall to the ground. During her statement, § 87(2)(b) initially stated that an officer struck § 87(2)(b) with a baton but, later in the same statement, when asked to elaborate on what happened, she stated that she did not observe any officers strike § 87(2)(b) with a baton.

§ 87(2)(b) alleged that, a white-shirted officer, identified via the investigation as DI Terence Hurson, the commanding officer of the 121st Precinct, picked up the trashcan and threw it at § 87(2)(b) striking her in the right leg, causing her to fall, and causing a bruise on her right leg. § 87(2)(b) made no such allegation and stated that she threw several bottles at police vehicles and picked up a trashcan to throw at the officers’ vehicles but ultimately did not throw it.

In her sworn statement, § 87(2)(b) alleged that after she struck a police car with a bottle, an officer, identified via the investigation as PO Furno, attempted to use a Taser against her. However, in her follow-up telephone statement, when asked about this allegation, she stated that it was a different officer, identified via the investigation as PO Carr, who threatened to use a Taser against her and removed a black object that she believed to be a Taser from his pocket, but did not attempt to use it. § 87(2)(b) alleged in her photo viewing interview that she observed PO Murphy push § 87(2)(b). § 87(2)(b) alleged that an unidentified officer attempted to use pepper spray against § 87(2)(b). § 87(2)(b) made neither of these allegations.

All interviewed officers denied having pushed, punched, or having utilized any batons or Tasers against any of members of the crowd during this incident or having observed any other officers do so. No officer recalled any civilians having attempted to physically interfere with officers attempting to arrest, transport, or place § 87(2)(b) into a police car. The only officer who specifically recalled having interacted with

§ 87(2)(b) or § 87(2)(b) was PO Furno, who denied having used any force against them.

§ 87(2)(g)

It is therefore recommended that **Allegations E, F, and G be Unsubstantiated.**

Allegation H – Force – An officer used a Taser against § 87(2)(b)

Allegation I – Force – An officer struck § 87(2)(b) with a baton.

As previously discussed, § 87(2)(b) provided somewhat inconsistent accounts across her various statements of the force used against her by officers and the circumstances of these uses of force. In her photo viewing interview, § 87(2)(b) could not identify either the officer whom she alleged used a Taser against her or the officer whom she alleged struck her with the baton. All interviewed officers denied having utilized any batons or Tasers against any of members of the crowd during this incident or having observed any other officers do so. A request was made to the 121st Precinct for any Taser Reports filed in regards to this incident and a response noted that none were found (BR25). It is therefore recommended that **Allegations H and I be closed as Officers Unidentified.**

Allegation J – Abuse of Authority – Sgt. Peter Guido threatened to arrest § 87(2)(b)

Allegation K – Abuse of Authority – PO Brian Babiak threatened to arrest § 87(2)(b)

Allegation L – Abuse of Authority – PO Luigi Peluso threatened to arrest § 87(2)(b)

Allegation M – Abuse of Authority – PO Brian Babiak threatened § 87(2)(b) with the use of force.

Allegation N – Abuse of Authority – PO Michael Carr threatened § 87(2)(b) with the use of force.

Allegation O – Abuse of Authority – PO John Murphy threatened § 87(2)(b) with the use of force.

Allegation P – Discourtesy – Sgt. Peter Guido spoke discourteously to § 87(2)(b)

Allegation Q – Discourtesy – PO Michael Carr spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation R – Discourtesy – PO Brian Babiak spoke discourteously to § 87(2)(b)

Allegation S – Discourtesy – PO John Murphy spoke discourteously to § 87(2)(b)

Allegation T – Discourtesy – PO Luigi Peluso spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) made several allegations regarding officers threatening to arrest and use force against them or speaking discourteously to them at various points in this incident. While they indicated that they were together at many of these points when some of these statements were made, they identified different officers as having made them. While the video footage provided by § 87(2)(b) shows civilians cursing at the officers repeatedly, it does not

§ 87(2)(g)

Pod: 5

Reviewer: _____
 Title/Signature Print Date